

26STCV10860 26STCV10860

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Case Number: 26STCV10860 Hearing Date: September 16, 2026 Dept: 406

MIKAH LOPEZ,

Plaintiff,

v.

PRISCILLA VOTION, et

al.,

Defendants.

Case No.: 26STCV10860

Hearing Date: September 16, 2026

[TENTATIVE]

order RE:

defendants' demurrer to complaint

BACKGROUND

On April 2, 2026, Plaintiff Mikah

Lopez filed this action against Defendants Priscilla Votion and Yvette Aragon

Herrera for libel and false light. The complaint alleges that Defendants posted

false statements online accusing Plaintiff of: (1) being involved in an

incident causing injury to a journalist; (2) abusing Defendant Votion by

choking her; and (3) being a molester.

On August 17, 2026, Defendants filed the instant demurrer to the complaint. Plaintiff filed an opposition on August 28, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) ‘in ordinary and concise language,’ and the test for adequacy is not absolute but ‘whether the pleading as a whole apprises the adversary of the factual basis of the claim.’” (Lim v. The TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendants have satisfied the meet and confer requirement. (See Reeves Decl.)

DISCUSSION

The elements of a defamation claim are:

(1) publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or cause special damage. (Wong v. Jing (2010) 189 Cal.App.4th 1354, 1369.) Libel is defamation in written form. (Edward v. Ellis (2021) 72 Cal.App.5th 780, 790.) A complaint alleging

defamation “must set forth ‘either the specific words or the substance of’ the allegedly defamatory statements.” (Barker v. Fox & Associates (2015) 240 Cal.App.4th 333, 343, quoting Lipman v. Brisbane Elementary Sch. Dist. (1961) 55 Cal.2d 224, 235.)

Here, the complaint makes the following allegation:

Defendant

Priscilla Votion falsely posted a statement on the Internet that Lopez was involved in an incident causing injury to journalist Julianna LaCoste. Additionally, Votion falsely posted that Lopez abused her by choking her for a minute. Defendant Aragon Herrera falsely posted that Lopez is a molester.

(Compl.
¶ 2.)

This sufficiently sets forth the substance of the alleged defamatory statements as required by the law. The demurrer acknowledges this legal standard but then demands additional detail not required by the law: the exact words of the publications; the dates of the publications; the websites or other locations where the publications appeared; the audience to whom the publications were directed; whether the statements were in the form of posts, comments, messages, etc.; whether the statements were part of the same or separate publications; and the circumstances surrounding the publications. (Dem. 5:1-9.) These are evidentiary facts not required for pleading. The existing allegations adequately “give[] notice of the issues sufficient to enable preparation of a defense.” (See Okun v. Superior Court (1981) 29 Cal.3d 442, 458.)

The complaint also alleges the remaining elements of defamation. The statements are allegedly false. (Compl. ¶¶ 2-3, 13, 19.) The defamatory effect of the statements is self-evident, as they charge Plaintiff with committing abuse, assault, and molestation. (See Burrill v. Nair (2013) 217 Cal.App.4th 357, 383 [“false statements charging the commission of crime or tending directly to injure a plaintiff in respect to his or her profession by imputing dishonesty or questionable professional conduct are defamatory per se”].) The complaint alleges that Plaintiff was damaged in the form of “loss of business opportunities, loss of reputation, shame, mortification and hurt feelings.” (Compl. ¶ 14.) These are ultimate facts which

must be assumed true on a demurrer.

In sum, the complaint sufficiently alleges a defamation claim. “When a false light claim is coupled with a defamation claim, the false light claim is essentially superfluous, and stands or falls on whether it meets the same requirements as the defamation cause of action.” (Jackson v. Mayweather (2017) 10 Cal.App.5th 1240, 1264.) Because the defamation claim survives, so does the derivative false light claim.

CONCLUSION

Defendants’ demurrer is OVERRULED.